

Suman Shukla v. State of U.P.

High Court of Judicature at Allahabad (Lucknow Bench) · Division Bench · 8 April 2025 · 2025:AHC-LKO:19735-DB · WRIT - C No. 1861 of 2025 · **Writ disposed of; final assessment and recovery quashed; fresh assessment directed.**

HEADNOTE

A final assessment of electricity dues made without the consumer being able to object to the provisional assessment cannot stand. The Court quashed the final assessment and the consequent recovery demand, allowed fifteen days to respond to the provisional assessment after supply of the inspection note, and directed a fresh final assessment within three weeks as per law.

FACTUAL SUMMARY

Suman Shukla challenged a final assessment of electricity dues and the recovery that followed. She contended that no raid had been conducted under clause 6.8(iv) and (v) of the Electricity Supply Code, 2005. An appeal under section 127 of the Electricity Act, 2003 was available. On 5 March 2025 the Court stayed recovery and called for the original record. At the 8 April 2025 hearing it emerged that a final assessment had been made although she had not been able to object to the provisional assessment. The licensee's counsel then supplied the inspection note.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

opportunity to object to provisional assessment

HOLDING

Where a final assessment has been made without the consumer being able to submit objections to the provisional assessment, the final assessment and the consequent recovery demand are liable to be quashed. The consumer is to be given an opportunity to respond to the provisional assessment (here, within fifteen days after the inspection note is supplied), and a fresh final assessment is then to be made within three weeks as per law. ¶ 2

PRINCIPLE TAGS

- clause-6.8-hearing-procedure-mandatory-before-uue-conclusion** A final assessment of electricity dues made without the consumer being able to object to the provisional assessment cannot stand.. ¶ 2
- final-assessment-order-relegates-assessee-to-section-127-appeal** A final assessment of electricity dues made without the consumer being able to object to the provisional assessment cannot stand.. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANY RAID WAS CONDUCTED IN TERMS OF CLAUSE 6.8(IV) AND (V) OF THE ELECTRICITY SUPPLY CODE, 2005

Raised on the first date; the petition was disposed of on the opportunity-to-object ground without deciding raid-procedure compliance. ¶ 2

NOT DECIDED — WHETHER A COPY OF THE INSPECTION COMPACT DISK CAN BE SUPPLIED TO THE CONSUMER

Licensee's counsel was to seek instructions; no ruling on entitlement. ¶ 2

